

Project Sabre
Commercial Solutions Opening (CSO)
Air Force Life Cycle Management Center (AFLCMC)

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Project Sabre Commercial Solutions Opening (CSO)

1.0 OVERVIEW

This Commercial Solutions Opening (CSO) under Project Sabre is a streamlined vehicle established by the Air Force Lifecycle Management Center (AFLCMC) to solicit and award innovative commercial solutions. The express purpose of this CSO is to deliver mission system capabilities—fielded within weapon system platforms and munitions—through open architectures and standards that revolutionize the warfighting capability delivery pipeline.

AFLCMC is responsible for developing, maintaining, and proliferating an integrated suite of open architectures and standards. This CSO will focus on leveraging existing and emerging commercial technologies to solve the enterprise's hardest integration challenges, enabling system-of-systems effects by design. A key objective is to acquire platform-agnostic hardware and software capabilities that can be leveraged across multiple systems, reducing vendor lock and accelerating capability delivery to the warfighter.

This CSO is established under the authority of 10 U.S.C. 3458 and DFARS 212.70 and its associated class deviations. Awards may be either FAR Part 12 Contracts or Other Transaction Agreements (OTAs) under 10 U.S.C. § 4022. All solicitations for specific solutions will be issued via "Calls" (amendments) to this base CSO. Each Call will detail the specific Areas of Interest (AOI), problem statements, and evaluation criteria.

Disclaimer: No specific proposals or solution briefs are being requested at this time. Specific solution briefs will be requested via Calls published under the CSO solicitation.

The Government is not obligated to make any awards, and all awards under this CSO are explicitly subject to the availability of funds and successful negotiations. The Government is not responsible for any monies expended by any vendor prior to the issuance of any awarded contract/agreement. The Government reserves the right to modify the solicitation requirements of this CSO and each subsequent Call at its sole discretion.

The Government seeks to inject commercial best practices into Air Force architectures and standards; create standard-compliant software; leverage the robust commercial hardware and software marketplace for military applications; enhance system survivability in highly contested environments; independently test and verify hardware/software compliance; prototype and instantiate new technologies on platforms; and provide robust digital infrastructure. This enables the Department of War (DoW) to deliver agile, integrated, and lethal mission system capabilities.

Performers may need to demonstrate the capability to work in highly classified environments, such as Secret, TS, SAP and SCI, before any award if necessary. The CSO is a streamlined acquisition process that seeks to reduce acquisition timelines and acquire new, innovative solutions that vendors can bring forth to meet the stated Areas of Interest detailed in each Call.

2.0 TECHNOLOGY FOCUS AREAS

AFLCMC is focused on maturing and deploying capabilities that form a cohesive, enterprise-wide open architecture ecosystem. The following focus areas are representative examples of the capabilities of interest; however, this is not an exhaustive list. The Government is open to, and highly encourages, innovative solutions from industry that address other technologies or approaches that align with the strategic vision outlined below. Solutions that address technologies across multiple pillars are encouraged.

The Government seeks commercial capabilities that prove end-to-end open architecture and systems engineering for modern weapon system platforms and munitions. Vendors may provide insight on solutions that address all or some of the capability pillars below. The desired end-state is a prototype capability that enables weapon systems to exploit open architecture principles across its full lifecycle (development, integration, test, deployment, operations, and sustainment). An ideal partner has a first-party ability to directly leverage underlying commercial technologies to meet project requirements; supporting partners would be considered enabling providers for specific aspects of the potential solution.

2.1 Robust Digital Infrastructure

Develop and maintain an affordable, reliable, and rapidly scalable digital infrastructure at multiple classification levels to support development, testing, and deployment of mission system capabilities.

Technologies of Interest: Hybrid Cloud IaaS/PaaS/SaaS, Secure Information Transport, Secure Access Service Edge (SASE), Software-Defined Networking (SDN), Edge Hyper-Converged Infrastructure, Zero Trust Architecture, Infrastructure as Code (IaC), Cloud Native Design, Software-defined perimeters, Cross Domain Solutions, rapid classified network expansion, high performance computing to support multidomain AI/ML training, data mesh construct, and real-time analytics.

2.2 Mission Engineering & Analysis

Provide world-class, data-driven products to support architectural solution decision making backed by business, mission systems agility, and capability return-on-investment (ROI) metrics, as well as mission impact traceability to warfighting requirements and mission threads.

Technologies of Interest: Model-Based Systems Engineering (MBSE) using Unified Architecture Framework (UAF), cost and schedule in UAF/SysML models, Machine Learning (ML) / Artificial Intelligence (AI) data factories, Big Data capabilities (data warehousing, data lakes), modeling simulation and analysis (e.g., Advanced Framework for Simulation, Integration, and Modeling (AFSIM); Joint Simulation Environment (JSE);

Secure Advanced Framework for Simulation and Modeling (SAFE-SIM)), operational analysis, and ROI analytic framework and analysis.

2.3 Integrated Open Architectures & Standards

Inject commercial best practices into a tailorable suite of open architectures and standards to enable agile, modular, and lethal system-of-systems effects.

Example Architectures & Standards: Solutions that mature, integrate, or enable adoption of Government Reference Architectures (GRAs) such as Agile Mission Suite (AMS) GRA, Autonomy GRA, Terrestrial GRA, Tactical Operator Interface (TOI) GRA, Open Mission Systems (OMS), Universal Command and Control Interface (UCI), Big Iron, Universal Armament Interface (UAI), and Sensor Open Systems Architecture (SOSA).

Technologies of Interest: Reverse engineering, existing capability refactoring/integration for API microservice architecture, SysML v2.0, standards rationalization and optimization, model-based systems engineering, embedded systems, and software development/engineering.

2.4 Cybersecurity, Compliance, Verification, & Test

Provide robust infrastructure and products to ensure a particular hardware/software implementation is compliant with the applicable open architecture, standard, or cybersecurity requirements. Facilitate an automated, streamlined testing methodology.

Technologies of Interest: Data encryption; cyber secure processing; continuous integration (CI) / continuous delivery (CD) software pipelines, binary, and container-level application security; and automated compliance evaluation of implementations.

2.5 Design and Instantiation

Implement, design, develop, and field mission capabilities with a modular open systems approach (MOSA).

Technologies of Interest: Capability development, design agent artifacts, software development, systems engineering, hardware/software prototyping, and test and evaluation.

2.6 Marketplace Development

Develop a robust mission system ecosystem, using prototypes to rapidly field advanced hardware and software capabilities.

Technologies of Interest: Software development and refactoring for cloud deployment, CI/CD software pipelines with Cross Domain Solutions, novel commercial hardware prototypes for SOSA applications, and GUI improvement/deployment.

3.0 CSO WITH CALLS

This CSO is a competitive solicitation seeking proposals for innovative, commercial technologies that accelerate attainment of defense capabilities. This CSO may result in the award of prototype projects, which include not only commercially available technologies fueled by commercial or strategic investment, but also concept demonstrations, pilots, and agile development activities that can incrementally improve commercial technologies, existing Government-owned capabilities, or concepts for defense application.

The purpose of this CSO is to provide the overarching solicitation structure for which future Calls will be issued. Future Calls may include Solution Briefs in response to a Call's Areas of Interest (AOIs). AOIs are focused topic(s) categories that will be published separately through Calls on the CSO and posted on SAM.gov. All Solution Briefs submitted in response to any AOI will be governed by this CSO unless otherwise noted in the Call.

Calls are written in a much broader manner than standard Government solicitations to maximize latitude in creativity when approaching a problem and to allow for maximum participation from commercial vendors who may not be familiar with submitting proposals to Government solicitations.

The Government may post Calls at any time. Interested companies are encouraged to frequently check SAM.gov for new Call postings.

The CSO outlines the competitive procedures to submit a response to a Call and will typically, though up to each individual Call, consist of three-steps: Solution Brief, Pitch, and full written proposal.

- **Step 1: Solution Briefs.** Solution Briefs submitted in response to an AOI in a Call shall be submitted as specified in Section 7 of this CSO. The Government will evaluate Solution Briefs against the criteria stated in each specific Call. The Government will not pay Companies for the costs associated with any submission given for this CSO.
- **Step 2: Pitch Session.** Companies whose Solution Briefs are evaluated to be of merit may be invited to provide a Pitch following the instructions provided in Section 7.3 of this CSO. The Government reserves the right to limit the number of Companies invited to pitch. As such, a Company's solution may be evaluated to be of merit but not invited to pitch. In the event that the Government requires a demonstration, additional information will be provided in the specific Call highlighting those procedures, otherwise Step 2 will be comprised solely of the Pitch. The Government will not pay vendor costs associated with Pitch generation. Step 2 is optional based on the Government's decision.
- **Step 3: Proposal.** Those Companies whose Solution Brief and Pitch (when applicable) are evaluated to be of merit and are selected for potential award of a Prototype OTA or a procurement contract may, if funding is available, be invited to submit a full written

proposal following the instructions provided in Section 7.4 of this CSO. The Government will not pay Companies for costs associated with the Request for Prototype Proposal (e.g., proposal development, negotiations) in Step 3.

4.0 DEFINITIONS

CSO with Calls: This allows for the publication of an umbrella CSO solicitation that contains overarching information but does not request solution briefs or proposals. The CSO functions as a framework identifying the technical areas and giving the basic terms and administrative information of the CSO. The requests for solution briefs and/or proposals are done by issuing Calls with AOI's that are published via amendments to the CSO. Calls can be issued at any time during the period of performance of the CSO. Each Call will be tailored to best fit the acquisition approached identified by the Government. The Calls may also include specific terms and/or conditions that apply to that particular Call such as technical details, security requirements and/or other pertinent clauses. Proposals or solution briefs are submitted only when Calls under this CSO are published.

Closed Calls: This type of Call allows for solution briefs and/or proposal submittals at a specified date and time as set forth in the subsequent Call. This process and the dates associated with it are more structured than Open Period Calls.

Areas of Interest: These are specific requests for innovative solutions that the Government will detail in each subsequent Call and will derive from the Technology Focus Areas (2.0 above). Vendors' innovative solutions should focus on addressing the specific AOI contained within a specific Call.

Solution Brief (Step I): A brief (2–5-page max or max 10-slide deck) summary of the proposed technical approach with an accompanying rough order of magnitude (ROM) price.

Pitch Session (Step II): By invitation only. Offerors may be asked to present orally (virtual or in-person) and/or demonstrate relevant capabilities; this Step may be used as a down-select tool and to obtain clarifications or supplemental information. Details (format, duration, materials allowed, evaluation criteria) will be provided with the invitation.

Other Transaction: Refers to the type of Other Transaction Agreement (OTA) that may be placed as a result of this CSO and associated Calls. The type of OT contemplated by this CSO is authorized by 10 USC 4022 for prototype projects directly relevant to enhancing the mission effectiveness of military personnel and the supporting platforms, systems, components, or materials proposed to be acquired or developed by the DoW, or for the improvement of platforms, systems, components, or materials in use by the armed forces. This type of OTA is

treated by the Department of War as an acquisition instrument, commonly referred to as an “other transaction” for a prototype project or a Section 4022 “other transaction.”

Prototype Project: Can generally be described as a proof of concept, model, reverse engineering to address obsolescence, pilot, novel application of commercial technologies for defense purposes, agile development activity, creation, design, development, demonstration of technical or operational utility, or combinations of the foregoing. A process, including a business process, may also be the subject of a prototype project. Although assistance terms are generally not appropriate in OT agreements in 10 U.S.C. 4022, ancillary work efforts that are necessary for completion of the prototype project, such as test site training or limited logistics support, may be included in prototype projects. A prototype may be physical, virtual, or conceptual in nature. The quantity of prototypes/commercial solutions should generally be limited to that needed to prove technical or manufacturing feasibility or evaluate military utility.

Innovative: This refers to any technology, process, or method, including research and development that is new as of the date of proposal submission; or any new application of an existing technology, process or method as of the proposal date.

Nontraditional Defense Contractor: As defined in 10 U.S.C. 2302(9), an entity that is not currently performing and has not performed, for at least the one-year period preceding the solicitation of sources by the DoW for the procurement or transaction, any contract or subcontract for the DoW that is the subject for full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section. This includes all small business concerns under the criteria and size standards in 13 C.F.R. Part 121.

Small Business Concern: Defined in the Small Business Act (15 U.S.C. 632) and 13 C.F.R. Part 121.

5.0 CONTRACT/AGREEMENT DETAILS

Regardless of the award instrument, the Government will seek either Firm Fixed Price (FFP) or Fixed Price Incentive (FPI). The Government shall not award grants or cooperative agreements because the purpose of this CSO is to transfer something of value directly to the Government.

The Government will be the sole decision authority on whether to pursue a FAR Part 12 Contract, an OTA, or no award at all; the Government reserves the right to use FAR and non-FAR Other Transaction Authorities. The Government reserves the right to award some, all or none of the proposal from the responses to each Call. The Contracting/Agreements Officer reserves the right to negotiate directly with the offeror on the terms and conditions prior to execution of the resulting contract/agreement on behalf of the Government.

Be advised that only a Contracting/Agreements Officer has the authority to enter into, or modify, a binding contract/agreement on behalf of the United States Government.

5.1 Prototyping

This CSO may result in the award of prototype projects, which include not only commercially available technologies fueled by commercial or strategic investment, but also concept demonstrations, pilots, and agile development activities that can incrementally improve commercial technologies, existing government-owned capabilities, and/or concepts for broad defense and/or public application. The Government reserves the right to award a FAR Part 12 contract or an Other Transaction (OT) under 10 U.S.C. 4022 agreement (including an OT for a prototype project and a follow-on OT or contract for production), or no award at all. Calls issued under this CSO constitute competitive procedures. AFLCMC may competitively award OTs for prototype projects that provide for the award of a follow-on production contract or OT for production to participants in the OT for prototype projects without the use of further competitive procedures, if the participant in the OT for prototype projects successfully completes the prototype project, as permitted by 10 USC 4022(f).

5.2 Iterative Prototyping

A contract or OT for a prototype awarded under this CSO shall allow for an iterative prototyping process. An iterative prototyping process will allow the Government to modify, by mutual agreement, the scope of a prototype contract or OT to allow for the adaptation and modification of the technology being prototyped to meet additional unique and discrete purposes/mission sets. The sequential prototype iterations may result in a separate prototype project rather than a modification of the original prototype contract or OT. These additional unique and discrete purposes/mission sets can be generated by AFLCMC or originate within any organization that AFLCMC supports.

5.3 Successful Completion of a Prototype

A prototype project is complete upon the written determination of the appropriate approving official (program manager and Contracting/Agreements Officer) for the matter in question that the efforts conducted under a prototype contract or OT: (1) met the key technical goals of a project; (2) met the metrics incorporated into the prototype contract or OT; or (3) accomplished a particularly favorable or unexpected result that justifies the transition to a production contract or OT. Furthermore, prior to successful completion of a prototype project under this CSO, the Government can transition any aspect of the prototype project determined to provide utility into production while other aspects of the prototype project have yet to be completed.

5.4 Follow-on Production of a Prototype

After award of a prototype using OT authority, the Government and a vendor may negotiate a follow-on contract or OT for production or solution integration with or without further competition. Any concept/technology/solution successfully proven through a prototype OT can be transitioned to a production contract. The Government reserves the right to award a follow-on contract or OT before the prototype is complete, under competitive procedures as provided in 10 U.S.C. 4022.

Any Call posted by the Government under this CSO could result in the potential award of a follow-on production or solution integration contract or OT.

The Government reserves the right to extend the performance to all, some or none of the selected solutions and decisions will be made based on the availability of funds.

5.5 Other Transaction Agreements (OTAs) Specifics

In accordance with 10 U.S.C. 4022(c), if an Agreement for a prototype is utilized and if that Agreement provides for payments in a total amount in excess of \$5M, the Agreement will include a mandatory clause that provides for the Comptroller General the ability to examine the records of any party to the agreement or any entity that participates in the performance of the Agreement. The \$5M amount includes the base Agreement plus any options. Additionally, to enter into an OT for a Prototype agreement under 10 U.S.C. 4022, one of the following conditions must be met:

- There is at least one nontraditional defense contractor (10 U.S. Code § 3014) or nonprofit research institution participating to a significant extent in the prototype project.
- All significant participants other than the Federal Government are small business concerns or non-traditional defense contractors.
- At least one third of total cost provided by sources other than the Federal Government.
- Senior Procurement Executive determines circumstances justify use of a transaction that provides for:
 - Innovative business arrangements not feasible or appropriate under a contract
 - Opportunity to expand defense supply base not practical or feasible under a contract

All OTAs awarded under this CSO will contain prohibitions on the use of certain telecommunications devices in accordance with DFARS 52.204-25. Further specifics and requirements as they relate to OTs may be applicable and included in subsequent Calls published under this CSO.

6.0 INSTRUCTIONS TO OFFERORS

Sections 6, 7, and 8 outline the typical competitive procedures to submit a response to a Call. Each individual Call may modify these procedures as required to meet acquisition goals.

6.1 Step I – Solution Brief (2-5 pages max, or 10 slides)

Offerors shall submit a written Solution Brief addressing the AOI. The Government will conduct peer review against Section 7 criteria. Based on that review, the Government may: (a) decline further consideration; (b) invite an Oral Presentation / product demonstration; or (c) proceed directly to Step III at the Government's discretion.

6.2 Step II –Pitch Session

By invitation only. Offerors may be asked to present orally (virtual or in-person) and/or demonstrate relevant capabilities; this Step may be used as a down-select tool and to obtain clarifications or supplemental information. Details (format, duration, materials allowed) will be provided with the invitation.

6.3 Step III – Final Proposal

Those down-selected will submit a full technical and price proposal for negotiation and potential award. The Government may negotiate requirements, deliverables, schedule, and terms and conditions prior to award. Awards will use fixed-price or fixed-price incentive contract types and treat items/services as commercial.

6.4 Continuous notice & acceptance window.

This CSO will be posted on the Government wide point of entry. AOIs may be updated during the CSO period.

7.0 GUIDELINES FOR SOLUTION BRIEFS, PITCHES, AND PROPOSALS

7.1 General Guidelines

1. Unnecessarily elaborate brochures or proposals are not desired.
2. Use of a diagram(s) or figure(s) to depict the essence of the proposed solution is strongly encouraged.
3. Companies may submit multiple Solution Briefs in response to any single AOI if each submission represents a separate and distinct concept.
4. The period of performance for any Solution Brief or proposal submitted under this CSO should generally not exceed 24 months.
5. Technical data with military application may require appropriate approval, authorization, or license for lawful exportation.

6. All Solution Briefs, Pitches, and Proposals should be unclassified to the maximum extent possible; see Section 9.1 for further clarification on classified submissions.

7. Solution Briefs, Pitches, and Proposals containing data that is not to be disclosed to the public for any purpose or used by the Government except for evaluation purposes shall include the following sentences on the cover page:

“This [select one: Solution Brief, Pitch, or Proposal] includes data that shall not be disclosed outside the Government, except to non-Government personnel for evaluation purposes, and shall not be duplicated, used, or disclosed -- in whole or in part -- for any purpose other than to evaluate this submission. If, however, an agreement is awarded to this Company as a result of -- or in connection with -- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent agreed upon by both parties in the resulting agreement. This restriction does not limit the Government's right to use the information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]”

Each restricted data sheet should be marked as follows:

“Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.”

8. Foreign-Owned businesses may independently submit a solution or do so as part of a teaming arrangement with one or more United States-Owned businesses. However, the ability to obtain an agreement based upon a submission may depend upon the ability of the Foreign Owned business to obtain necessary clearances and approvals to obtain proscribed information.

9. Submissions sent through other channels or after the AOI period has ended will not be reviewed nor evaluated.

10. Solution Briefs that are chosen for the Step 2/3 Pitch/Proposal submission will be notified in writing as soon as practicable.

7.2 Step 1 Solution Brief

STEP 1 SOLUTION BRIEF CONTENT

Solution Briefs should not exceed two (2) - five (5) written pages using 12-point font or, alternatively, Solution Briefs may take the form of briefing slides which should not exceed ten (10) slides.

In your Solution Brief, please include:

Title Page (does not count against page limit)

Company Name, Title, Date, Point of Contact Name, E-Mail Address, Phone, and Address.

Specifically identify the Call's AOI for which the Solution Brief is submitted.

Executive Summary (one page)

Provide an executive summary of the technology.

Technology Concept

Describe the unique aspects of your technology and the proposed work as it relates to the Call/specified AOI in the Call. Identify whether the effort includes the pilot or demonstration of existing commercial technology (identified as commercially ready and viable technology), or the development of technology for potential defense application. If development or adaptation is proposed, identify a suggested path to mature the technology. Identify aspects which may be considered proprietary.

Company Viability

Provide a brief overview of the company. Provide a summary of current fundraising to date or a summary of the top line (gross sales/revenues). Provide a summary of product commercialization and go-to-market strategy.

Solution Briefs will be evaluated on the basis of the merit of the proposed concept in addressing the Call's AOI. Additionally, all submissions will be fairly evaluated, however, only a select few will be invited to Pitch. Solution Briefs that are chosen for the Step 2/3 Pitch Session/Proposal will be notified in writing as soon as practicable, as well as notifying those not selected.

7.3 Step 2 Pitch Session (Call-Dependent)

STEP 2 PITCH CONTENT

In Step 2, Companies may be asked to provide an in-person or virtual Pitch (preference not given to either option) to demonstrate and provide further details on their proposed concept/technology/solution and the technical and business viability of the proposed solution. The Government recommends a target presentation duration of twenty (20) minutes with time for follow-on questions from the Government, as needed. The Government may elect to use external market research during the Pitch to evaluate a Company's viability. In addition to the Pitch, the Government, at its discretion, may request for consideration an additional written submission to further supplement the information provided in the Step 1 Solution Brief.

During the Step 2 Pitch, the Company must detail/address:

Estimated Price/Schedule

Provide a Rough Order of Magnitude (ROM) price and notional schedule for how the proposed concept may be prototyped within the DoW.

Data Rights Assertions

The Solution Brief will identify any IP involved in the effort and associated restrictions on the Government's use of that IP.

In addition to these required areas, the Government may request the Company provide additional information/detail with respect to the Technology Concept information provided in the Step 1 Solution Brief.

Pitch submissions will be valid for 180 calendar days after the Pitch date. Upon completion of evaluations, the Government will notify the Company that: (1) the proposed concept/technology/solution has been selected for possible award of a Prototype OTA and the Company is invited to submit a full proposal; (2) the proposed concept/technology/solution is not of interest to the Government; or (3) the proposed concept/technology/solution is of interest, but not eligible for a proposal due to availability of Government resources.

If the proposed concept/technology/solution is of interest, but not eligible for a proposal due to availability of Government resources, the Company may be contacted with a request to respond to a Request for Proposal (RPP) within 180 calendar days from the Pitch date. If after 180 calendar days from the Pitch date (or earlier if notified by AFLCMC), Government resources are not identified to formally move into Step 3, the Company will no longer be eligible for an award under that particular Call's AOI.

7.4 Step 3 Proposal

STEP 3 PROPOSAL CONTENT

The final Step of the CSO process is the RPP. Based upon the evaluation detailed above, the Government may issue the Company an RPP. The Company will be invited to develop and submit a full written proposal and negotiate appropriate terms and conditions governing the prototype project. Companies may discuss ideas and details of the proposal during the proposal writing process with the Government. Each proposal submitted shall consist of two sections: Section 1 shall provide the technical proposal; Section 2 shall address the price/cost/schedule portions of the proposal. These proposals will be assessed by subject matter experts. Companies may propose their own internal terms and conditions (e.g., Service License Agreements (SLA) and/or User License Agreements (ULA)) to be considered during negotiations with the Government. Companies should note that there are certain terms and conditions the Government is unable to accept. (See Attachment 1 for Representative Commercial Rider.) However, projects awarded through the CSO are flexible to adopt customary industry standards where it is otherwise legal and where it meets the Government's needs.

7.4.1 Section 1 Technical Proposal

Title Page

Company Name, Title, Point of Contact Name, Date, E-Mail Address, Phone, and Address and any subcontractors or team members. Include an abstract which provides a concise description of the proposal.

Propose a Technical Approach

Describe the background and objectives of the proposed work, the approach, deliverables, and the resources needed to execute it. Include the nature and extent of the anticipated results. Include ancillary and operational issues such as certifications, algorithms, and any engineering/software development methodologies to be used. This proposal must include a Statement of Work (SOW) identifying the work to be performed and the deliverables. Provide a detailed project schedule that outlines the various steps of work to be accomplished within the proposed period of performance. Companies may refer to the Solution Brief that prompted this proposal request, but do not duplicate it.

Government Support Required

Identify the type of support, if any, the Company requests of the Government in general such as facilities, equipment, data, and information or materials.

7.4.2 Price Proposal

The Company shall propose a total price to complete the prototype project and provide any other data or supporting information that is necessary for the determination of a fair and reasonable price. This can include, but is not limited to, commercial price catalog or other proprietary information to help the Government assess project cost.

Additionally, if the Vendor proposes to award an Other Transaction for Prototype, then the following 5 requirements must be satisfied and addressed in the Company's proposal:

1. ***Meets the definition of a Prototype***
2. ***Quantity:*** Quantity is limited to that needed to prove technical or manufacturing feasibility or evaluate military utility
3. ***Meets Mission Effectiveness standard:*** The solution is directly relevant to enhancing DoW mission effectiveness
4. ***Meets non-traditional participation/cost share requirement:*** Non-traditional defense contractor contributes to a significant extent; if not, 1/3 cost share implementation is addressed
5. ***Defense Utility:*** Solution is applicable to a DoW platform, system or component

8.0 Submission Information

8.1 Process

Each submission will be evaluated by scientific/technological peer reviewers against the criteria stated in the specific Call. The Government may produce a written evaluation report for each Solution Brief capturing Step I findings and—if applicable—Step II Pitch Session assessments. The Government reserves the right to evaluate proposals against each other.

8.2 Down-selection

The Government may limit invitations to Step II and down-select based on Step I results and resource constraints.

8.3 Decision documentation

The Contracting Officer will document that DFARS 212.70 requirements are met and place the decision memo in the file.

8.4 Three-Step Evaluation.

The Government intends to use a three-step process for evaluation:

Step I (Solution Brief)—Peer review of a 2–5-page brief, or 10-slide max PowerPoint.

Step II (Pitch Session)—By invitation, a short oral presentation and/or product demonstration; used as a down-select and to obtain clarifications.

Step III (Final Proposal)—For invited Offerors, a complete technical and price proposal for negotiation and potential fixed-price/fixed-price incentive award.

Proposals are evaluated on their individual merits; written evaluation reports will be prepared for each submission. This CSO will specify the acceptance period for Solution Briefs. Selection via peer review under this CSO constitutes use of competitive procedures under 10 U.S.C. 3458 and DFARS 206.102-70.

Disclaimer: No proposals or solution briefs are being requested at this time. Those will be requested via Calls published under the CSO solicitation.

9.0 GENERAL PROPOSAL INFORMATION

9.1 Classified Proposals

Classified whitepapers/proposals will not be accepted under this CSO unless otherwise stated in the Call. If topics require classified work, the proposing vendor must have a facility clearance in order to perform the work. If the Call asks for classified proposals, submittals **MUST** be submitted through the proper SECURE channels.

9.2 Security

Security classification will be determined for each Call/Award. If classified data will be accessed or generated, a facility and storage clearance, at the required classification level, will be required and the proposal will discuss appropriate personnel and facility clearances.

If a vendor has any reason to believe their concept may reference ideas or operations that require special protection, the vendor should immediately contact the Contracting/Agreements Officer for further instruction.

Additionally, if a DD254 is applicable for a Call/Award, vendors must verify their Cognizant Security Office information is current with Defense Security Service (DSS).

9.3 Promotional Material

Promotional and non-project related discussion is discouraged, and additional information provided via Universal Resource Locator (URL) links or on computer disks, CDs, DVDs, video tapes or any other medium will not be accepted or considered in the proposal evaluation unless otherwise directed by the Call or the Contracting/Agreements Officer. This also means that unnecessarily elaborate brochures or proposals are not desired.

9.4 Small Business

FAR-based contracts awarded pursuant to this CSO shall include FAR 52.219-8, Utilization of Small Business Concerns (Oct 2018). FAR-based contract awarded pursuant to this CSO which meet FAR Subpart 19.7 criteria for small business subcontracting plans shall include FAR 52.219-9, Small Business Subcontracting Plan (March 2020).

Vendors shall address plans to comply with these requirements as part of their proposals if seeking OTs which provide for follow-on non-competitive production contracts. Vendors not seeking either instrument in the preceding sentence shall clearly state so as part of their proposal and shall address these requirements as part of the competition for follow-on production contracts. In the event that any follow-up production contracts are required to have small business subcontracting plans and are negotiated using FAR 15, DFARS 215.304(c) Small Business Participation Plan shall be required.

9.5 Export-Controlled Items

Depending on the proposal, it may be subject to Export Control (International Traffic in Arms (ITAR) 22 CFR 120-131, or Export Administration Regulations (EAR) 15 CFR 710-774). If the effort is subject to export controls, then a Certified DD Form 2345, Military Critical Technical Data Agreement, will be required to be submitted with proposals. DFARS 252.225-7048, "Export Controlled Item (JUN 2013)" clause shall be contained in all resulting contracts.

9.6 Data Rights

All proposal submissions shall include Data Rights Assertions, if applicable. This will be an essential element of each proposal submission.

The Government reserves the right to negotiate data rights as part of the Contracting/Agreement process. Additionally, each Call may have specific data rights considerations associated with it. Should this be the case, the specific rights the Government is requesting will be detailed in each Call. The Government also reserves the right to tailor the data management approach for each individual effort based on the needs for each situation.

9.7 FAR Part 12 Considerations

In accordance with DFARS 227.7102-1, the Government seeks to acquire the technical data that is customarily available on a commercial basis. As a result, DFARS clauses 252.227-7015 and 252.227-7037 will be included on each FAR Part 12 Contract awarded as a result of Calls under this CSO. If additional data rights are considered warranted, the Government reserves the right to negotiate these with prospective vendors as part of the contracting process.

If the Government pays for any portion of the development costs, DFARS 252.227-7013 will be included to govern the associated technical data for the portion of the Commercial Items that was developed using Government funds. For the portion of Commercial items that was developed exclusively at private expense, DFARS 252.227-7015 will still govern the technical data to the extent it is commercial.

Companies whose effort originated under the SBIR program will maintain standard SBIR Data Rights in accordance with DFARS 252.227-7018 (Class Deviation 2020-O0007). Additional clauses may be applicable depending on the technology and requirements associated with it.

10.0 OTHER INFORMATION

10.1 Unique Item Identification

For hardware deliverables, Item Unique Identification in accordance with DFARS 252.211-7003 may be required. Vendors may contact the Contracting/Agreements Officer for additional information.

10.2 Within Scope Modifications

Potential vendors are advised that awards resulting from the Calls under this CSO may be modified during the performance to make within scope changes. Only a Contracting/Agreements Officer can legally bind a contract/agreement modification on behalf of the United States Government.

10.3 Non-Government Advisors and Source Selection Information

Non-Government Advisors may participate in the evaluation of all submissions and shall have a signed non-disclosure agreement (NDA) with the Government. Non-Governmental Advisors may also serve in administrative and assistance support capacities. The Government understands that information provided in response to this CSO is presented in confidence and may contain trade secrets or commercial or financial information, and it agrees to protect such information from unauthorized disclosure to the maximum extent permitted or required by Law. Calls will identify the companies supporting the Government for each competition.

The Government will treat all submissions to Calls published against this CSO as source selection information. During the evaluation process, submissions may be handled by Non-Government Advisors for administrative purposes and/or technical evaluations. All Government support contractors are bound by appropriate NDAs. Submissions will not be returned unless otherwise stated in the Call.

10.4 Multiple Solution Briefings/Proposal Submissions

Vendors may submit multiple submissions in response to any single Area of Interest detailed in each Call if each submission represents a separate and distinct concept. However, for each individual submission, prospective Vendors may only address one distinct AOI per submission unless otherwise permitted in the individual Call.

10.5 Fraud and False Statements

Knowingly and willfully making false, fictitious, or fraudulent statements or representations may be a felony under the Federal Criminal False Statement Act (18 U.S.C. 1001) punishable by a fine or up to \$10,000, up to five years in prison, or both.

10.6 DUNS and SAM Registration

Vendors must have a Unique Entity Identifier (UEI) and must register in the System for Award Management (SAM) prior to receiving an award or agreement. Vendors must not be suspended or debarred from award by the Federal Government nor be prohibited by Presidential Executive Order and/or law from receiving an award.

10.7 WAWF Registration

As specified in a particular Call, Vendors may be required to be registered in the prescribed Government invoicing system (Wide Area Workflow). If not specified, the Call will explain how invoicing will be handled.

10.8 Supplier Performance Risk System (SPRS)

In order to receive a DoW Contract, every Vendor will be required to perform a Basic NIST SP 800-171 DoW Assessment. That process is described [here](#).

Once the Basic NIST 800-171 DoW Assessment is complete, each Contractor will need to follow the instructions [here](#) to enter the results in SPRP on the [PIEE website](#).

Further, CMMC requires companies entrusted with sensitive unclassified DoW information to implement cybersecurity standards at progressively advanced levels, depending on the type and sensitivity of the information. Please reference the following site to learn more about requirements for your specific submission:

<https://DoWcio.defense.gov/cmmc/About/>

10.9 Cost Sharing or Matching

Cost sharing or matching will be considered based on the solutions proposed and details associated with each Call. The Government has final decision authority on whether to enter into a cost sharing or matching agreement.

Disclaimer: This is a CSO framework. No proposals or solution briefs are being requested at this time. All requests will be issued via Calls published as amendments to this CSO. The Government is not obligated to make any awards. All awards are subject to the availability of funds and successful negotiations.

Attachment 1:
Representative Commercial Rider

Commercial licenses shall be consistent with Federal procurement laws and DFARS 227.7202-1(a). Where commercial licenses are applicable, vendors shall ensure that:

- (1) The licenses are legally transferable to the Government.
- (2) All rights under the license will fully ensure the benefit of, and be transferred to, the Government.
- (3) The license shall not subject the Government to the laws of a particular jurisdiction.
- (4) The license shall not comment on the entitlement to attorney fees if a matter goes to trial.
- (5) The license shall not attempt to have an individual other than a warranted Contracting Officer bind the Government to terms and conditions.
- (6) The license shall not be inconsistent with the Prompt Payment Act.
- (7) The license shall not attempt to impose a vendor lock-out provision, which is a mechanical or electronic method embedded in a system that prevents unauthorized use or distribution of the program. This method can result in an impermissible unilateral change to a contract and involve a vendor having free access to a computer system that must be secure.
- (8) The license shall not state that it sets forth the entire agreement between the vendor and the Government because applicable Federal laws and regulations always govern Federal contracts.
- (9) The license shall not impose an automatic renewal provision on the Government or a possibility of a unilateral price increase.
- (10) The license shall not permit the vendor to unilaterally terminate the contract or license.
- (11) The license shall not require the Government to pay any taxes or duties.
- (12) The license shall not state that the sole remedy available to the Government if the refund of money.
- (13) The license shall not be inconsistent with FAR 32.233-1 DISPUTES (JUL 2002) or FAR 52.249-8 DEFAULT (FIXED PRICE SUPPLY AND SERVICE (APR 1984)).

- (14) The license shall not create a contingent liability for the Government.
- (15) The license shall not restrict the Government from using a product at various sites or restrict the use of a product by various Government agencies or third parties performing work on behalf of the Government.

Any license that contains terms or conditions inconsistent with the above restrictions shall be read out of the license and be unenforceable.